

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Chaves	Team: Squad #10	CCRB Case #: 201803402	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 04/17/2018 8:00 PM	Location of Incident: 996 Williams Avenue and the 69th Precinct Stationhouse	18 Mo. SOL 10/17/2019	Precinct: 69		
Date/Time CV Reported Fri, 04/20/2018 8:30 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 05/01/2018 1:48 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Francisco Diaz	27416	952677	069 PCT
2. SGT Nelson Ayala	04705	948015	069 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Martin Biliski	22480	952467	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Francisco Diaz	Abuse: At 996 Williams Avenue in Brooklyn, Police Officer Francisco Diaz frisked § 87(2)(b)	A . Unsubstantiated
B . POM Francisco Diaz	Abuse: At 996 Williams Avenue in Brooklyn, Police Officer Francisco Diaz searched § 87(2)(b)	B . Unsubstantiated
C . SGT Nelson Ayala	Abuse: At the 69th Precinct stationhouse in Brooklyn, Sergeant Nelson Ayala strip-searched § 87(2)(b)	C . Unsubstantiated
D . POM Francisco Diaz	Abuse: At the 69th Precinct stationhouse in Brooklyn, Police Officer Francisco Diaz searched the vehicle in which § 87(2)(b) was an occupant.	D . Substantiated

Case Summary

On April 20, 2018, § 87(2)(b) filed the following complaint with IAB, where it received original log number § 87(2)(b). It was referred to the CCRB as referral log number § 87(2)(b) where it was received on May 1, 2018. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

At approximately 8:00 p.m., on April 17, 2018, Sergeant Nelson Ayala, Police Officer Francisco Diaz, and Police Officer Martin Biliski, of the 69th Precinct, approached § 87(2)(b) in front of 996 Williams Avenue in Brooklyn. The officers reportedly stopped § 87(2)(b) vehicle because it had expired license plates.

Police Officer Diaz allegedly frisked and searched § 87(2)(b) before obtaining his identification (**Allegation A: Abuse of Authority: Frisk: Unsubstantiated, Allegation B: Abuse of Authority: Search of Person: Unsubstantiated**). The officers obtained § 87(2)(b) identification and determined that his driver's license was expired. The officers arrested § 87(2)(b) and searched his person incident to the arrest, finding six alleged Oxycodone pills. The officers charged § 87(2)(b) with § 87(2)(a) 160.50

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

The officers transported § 87(2)(b) to the 69th Precinct stationhouse and lodged him in a cell. Sergeant Ayala then authorized a strip search of § 87(2)(b) and the three officers conducted the strip search (**Allegation C: Abuse of Authority: Strip-search: Unsubstantiated**). Officers reportedly recovered a razor blade from § 87(2)(b) underwear, and subsequently charged him with § 87(2)(a) 160.50

§ 87(2)(b)

As part of § 87(2)(b) arrest processing, Police Officer Diaz conducted an inventory search of his vehicle (**Allegation D: Abuse of Authority: Vehicle Search: Substantiated**).

The investigation obtained no video footage of this incident.

Findings and Recommendations

Allegation A – Abuse of Authority: At 996 Williams Avenue in Brooklyn, Police Officer Francisco Diaz frisked § 87(2)(b)

Allegation B – Abuse of Authority: At 996 Williams Avenue in Brooklyn, Police Officer Francisco Diaz searched § 87(2)(b)

§ 87(2)(b) provided a sworn statement over the phone while incarcerated in the § 87(2)(b) on August 6, 2019 (**Board Review 01**, see **Board Review 02** for notarized verification statement). Sergeant Ayala was interviewed on August 14, 2019

(**Board Review 03**). Police Officer Diaz was interviewed on August 30, 2019 (**Board Review 04**). Police Officer Biliski was interviewed on September 20, 2019 (**Board Review 14**).

It is undisputed that on the incident date, the subject officers approached § 87(2)(b) while he was standing in front of 996 Williams Avenue in Brooklyn. The officers obtained § 87(2)(b) identification, arrested him for § 87(2)(a) 160.50 § 87(2)(b) searched him after he was arrested, and transported him to the 69th Precinct stationhouse.

In his sworn statement, § 87(2)(b) stated that as this incident began, he was standing in front of a friend's apartment building. § 87(2)(b) car was parked across the street, but he had not driven it on the incident date. The three officers got out of an unmarked police car and approached § 87(2)(b) Police Officer Diaz then had him raise his hands and arms. Police Officer Diaz patted down § 87(2)(b) stomach, back, waistband, thighs, shins, and ankles. Police Officer Diaz grabbed the fabric of § 87(2)(b) pant legs and shook it. Police Officer Diaz reached into § 87(2)(b) pants pockets but did not remove any items or ask § 87(2)(b) about the pockets' contents.

In their interviews, Police Officer Diaz and Sergeant Ayala consistently stated that they observed § 87(2)(b) vehicle in motion along Williams Avenue. As the officers stopped the vehicle, § 87(2)(b) got out of the driver's seat and walked towards the nearby housing development. Officers then approached § 87(2)(b) on foot. Police Officer Biliski did not recall how the officers came to stop § 87(2)(b) or whether he got out of his vehicle and tried to walk away.

In his interview, Police Officer Diaz stated that he did not recall any officer touching § 87(2)(b) prior to obtaining his ID. Police Officer Diaz did not recall frisking or searching § 87(2)(b) prior to obtaining his ID, and did not recall seeing another officer do so. Police Officer Diaz acknowledged searching § 87(2)(b) after the officers determined that § 87(2)(b) license was suspended and that he was under arrest.

In his interview, Police Officer Diaz consistently stated that during this incident he was working with Sergeant Ayala and Police Officer Biliski. In his memo book entries from the incident date, Police Officer Diaz did not note who he was working with (**Board Review 05**).

In his interview, Sergeant Ayala stated that immediately after approaching § 87(2)(b) one of his subordinate officers frisked him as a safety precaution. Sergeant Ayala did not frisk § 87(2)(b) and could not recall which of the other officers did. Sergeant Ayala described the frisk as "quick" and limited to the outsides of § 87(2)(b) s pants pockets and his waistband area.

In his interview, Sergeant Ayala consistently stated that during this incident he was working with Police Officer Diaz and Police Officer Syed Mahmud of the 69th Precinct. In his memo book entries from the incident date, Sergeant Ayala noted that he was working with Police Officer Diaz and Police Officer Mahmud (**Board Review 05**).

In his interview, Police Officer Biliski stated that he did not recall most of the vehicle stop and subsequent interaction with § 87(2)(b). He did not recall whether any officer, including himself, frisked or searched § 87(2)(b) prior to arresting him.

In his interview, Police Officer Biliski initially stated that he was only working with Police Officer Diaz during this incident. When informed by the investigation that Sergeant Ayala had reportedly been involved, Police Officer Biliski acknowledged that this was correct. In his memo book entries from the incident date, Police Officer Biliski wrote that he was working with Police Officer Diaz (**Board Review 15**).

The investigation obtained the NYPD's internal investigatory case file for this incident. IAB log number § 87(2)(b) was referred to the 69th Precinct for investigation. As part of this investigation, Sergeant Paul Padilla of the 69th Precinct informally interviewed Police Officer Diaz and Police Officer Biliski (but not Sergeant Ayala) on May 22, 2018, and May 25, 2018, respectively. These officers' summarized statements (**Board Review 06**) do not discuss the alleged frisk and search, but both officers acknowledged being involved in the incident.

Police Officer Diaz prepared a UF-61 criminal complaint report (**Board Review 10**), arrest report (**Board Review 11**), property vouchers (**Board Review 12**), and criminal court complaint (**Board Review 13**) for this incident. The UF-61 and arrest report contain identical narratives that are consistent with Police Officer Diaz's CCRB statement. § 87(2)(a) 160.50

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

The investigation also obtained the 69th Precinct roll call for the incident tour (**Board Review 07**). The roll call indicates that Sergeant Ayala, Police Officer Diaz, and Police Officer Biliski were all assigned to vehicle number 241, while Police Officer Mahmud was assigned to vehicle number 635 with another uninvolved officer.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) alleges that Police Officer Diaz both frisked and searched him. Police Officer Diaz and Police Officer Biliski stated that they had no recollection of these actions. Sergeant Ayala stated that an unknown officer frisked, but did not search,

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(g)

All four people were interviewed at least 14 months after this incident. § 87(2)(b) was

undisputedly patted down and searched multiple times during this incident after his arrest, § 87(2)(g)

§ 87(2)(b) Sergeant Ayala also denied that an officer searched § 87(2)(b) and could not identify which officer allegedly conducted the frisk. § 87(2)(g)

§ 87(2)(g) Therefore, it is recommended that **Allegation A** and **Allegation B** be **unsubstantiated**.

Allegation C – Abuse of Authority: At the 69th Precinct stationhouse in Brooklyn, Sergeant Nelson Ayala strip-searched § 87(2)(b)

It is undisputed that the officers transported § 87(2)(b) to the 69th Precinct stationhouse, brought him before the desk, and then lodged him in a holding cell. Shortly thereafter, the officers ordered § 87(2)(b) to completely undress. § 87(2)(b) removed all his clothes, and officers searched them. Officers had § 87(2)(b) bend over and turn around in place. After a few minutes, the officers gave § 87(2)(b) his clothes back.

In his interview, § 87(2)(b) alleged that all three involved officers were present during the strip search. He denied possessing any contraband, including a razor blade, during this incident. He acknowledged being arrested on previous dates, and denied there being anything unusual about his time in the stationhouse leading up to the strip search.

In their CCRB interviews, Sergeant Ayala and Police Officer Diaz provided consistent explanations for why they strip-searched § 87(2)(b). Both officers stated that as Police Officer Diaz lodged § 87(2)(b) in a holding cell, he tried to search § 87(2)(b) person again. § 87(2)(b) repeatedly rotated his body away from Police Officer Diaz whenever Police Officer Diaz tried to search his waist and groin. Police Officer Diaz observed this behavior in person, while Sergeant Ayala observed it over a live video feed.

In his interview, Sergeant Ayala also stated that he continued watching the video feed after Police Officer Diaz lodged § 87(2)(b) and walked away from the cell. He saw § 87(2)(b) repeatedly put his entire hand, up to the wrist, inside and beneath the front of his pants. § 87(2)(b) did this at least twice. Sergeant Ayala estimated that § 87(2)(b)

§ 87(2)(b) kept his hand inside of his pants for “a couple of seconds” each time he reached inside.

Sergeant Ayala and Police Officer Diaz stated that they spoke to each other about § 87(2)(b) behavior. After the officers agreed that his behavior was indicative of an attempt to conceal contraband, Sergeant Ayala authorized a strip search. Sergeant Ayala and Police Officer Diaz then went to § 87(2)(b) cell and strip-searched him. Police Officer Diaz recovered a razor blade partially wrapped in black electrical tape concealed within the seam of § 87(2)(b) underwear.

In his interview, Sergeant Ayala stated that he did not learn, from any source, that § 87(2)(b) had a history of secreting or smuggling contraband on his person. He authorized the strip search based on his own observation of § 87(2)(b) in the cell over the video feed, and Police Officer Diaz’s report of suspicious motions. There were no other factors that influenced his decision to authorize the strip search. He stated that only he and Police Officer Diaz conducted the strip search.

In his interview, Police Officer Diaz stated that he could not recall whether any other officers beyond Sergeant Ayala, such as Police Officer Biliski, also participated in the strip search.

The investigation asked Police Officer Diaz whether he communicated with officers from other commands during this incident, and he initially answered as follows. Over the time that § 87(2)(b) was lodged in the 69th Precinct stationhouse, Police Officer Diaz had no contact with officers from other commands. Police Officer Diaz did not receive information from officers of other commands indicating that § 87(2)(b) might be concealing contraband on his person.

The investigation asked Police Officer Diaz whether he was informally interviewed regarding this incident during an internal NYPD investigation. Police Officer Diaz said that he was not interviewed. The investigation showed Police Officer Diaz and his counsel a summary of such an interview, which was prepared as part of the internal NYPD case file for log number § 87(2)(b) (**Board Review 06**). Police Officer Diaz said he had no memory of the interview. The investigation read aloud the portion of the summary in which Police Officer Diaz reported that Sergeant Ayala had spoken with officers from the Auto Crime command about § 87(2)(b). According to the NYPD interview summary, Sergeant Ayala authorized a strip search of § 87(2)(b) based on information obtained from the Auto Crime officers. Police Officer Diaz told the CCRB investigation that he had no awareness of § 87(2)(b) being investigated by Auto Crime.

Sergeant Ayala authorized a strip search of § 87(2)(b). Police Officer Biliski did not recall why Sergeant Ayala did this, or if either Sergeant Ayala or Police Officer Diaz told him why they were going to conduct a strip search. Police Officer Biliski went with Sergeant Ayala and Police Officer Diaz to the “back cells” within the stationhouse, where § 87(2)(b) was lodged. Police Officer Biliski explained to the investigation that to access the § 87(2)(b)’s cell, the officers took a right turn, walked down a hallway, and then took a left turn. § 87(2)(b)’s cell was immediately around the corner after that

left turn. That is where Sergeant Ayala and Police Officer Diaz strip-searched § 87(2)(b). Police Officer Biliski waited around the corner, with no line of sight to the cell. As a result, Police Officer Biliski did not see the strip search. However, he knew that no other civilians were lodged in the cell area around § 87(2)(b) and no other officers participated in the strip search (another officer would have had to walk by him to get to where Sergeant Ayala and Police Officer Diaz were). Police Officer Biliski did not hear § 87(2)(b) of the other officers make any statements during the strip search. He was unable to estimate how long the strip search took. Towards the end of his tour on the incident date, Police Officer Biliski spoke to Police Officer Diaz and learned that the strip search had uncovered a small blade on § 87(2)(b)'s person. Police Officer Biliski did not handle or voucher this item, and did not prepare an officer safety alert about it.

When initially asked by the investigation, Police Officer Biliski said that he did not communicate with any officers from other commands or units regarding this arrest. He did not know whether officers from other commands or units spoke to Sergeant Ayala or Police Officer Diaz.

The investigation asked Police Officer Biliski whether he was informally interviewed regarding this incident during an internal NYPD investigation. Police Officer Biliski said that he was not interviewed. The investigation showed Police Officer Biliski and his counsel a summary of such an interview, which was prepared as part of the internal NYPD case file for log number § 87(2)(b) (**Board Review 06**). After reading the summary, Police Officer Biliski said that it did not refresh his recollection of the incident and did not amend his statement or offer further details.

The investigation read aloud the portion of the summary in which Police Officer Biliski reported that Sergeant Ayala had spoken with officers from the Auto Crime command about § 87(2)(b). According to the NYPD interview summary, Sergeant Ayala authorized a strip search of § 87(2)(b) based on information obtained from the Auto Crime officers. Police Officer Biliski told the CCRB investigation that he had no memory of making this statement and no awareness of § 87(2)(b) being investigated by Auto Crime. He denied working with the Auto Crime unit to investigate or arrest § 87(2)(b). When asked whether the NYPD interview summary was misattributing statements to him, Police Officer Biliski said that it was possible but could not explain why that might have happened.

The written summaries of Police Officer Diaz's and Police Officer Biliski's statements to the NYPD are almost identical (**Board Review 06**). Neither summary mentions anything about § 87(2)(b) making suspicious or evasive movements while in custody. Instead, the summaries specifically state that Sergeant Ayala authorized the strip search after speaking to officers from the Auto Crime Division. Auto Crime officers told Sergeant Ayala that they had observed § 87(2)(b) pulling narcotics from his undergarments and selling them to undercover officers.

§ 87(2)(b)'s arrest report for this incident states that he was strip-searched at the 69th Precinct stationhouse. This strip search was noted on page 24 of the command log, and yielded a razor blade from § 87(2)(b) person. Along with other offenses, § 87(2)(b)

§ 87(2)(b) was charged with § 87(2)(a) 160.50

(Board Review 11).

The 69th Precinct command log for the incident tour notes a strip search. On page 23, the entry for § 87(2)(b) arrest notes that Sergeant Ayala authorized a strip search, while the next entry, on page 24, specifies that Police Officer Diaz and Police Officer Biliski conducted it and found a razor blade inside § 87(2)(b) underwear (Board Review 18). Police Officer Diaz prepared a property voucher for this razor blade (Board Review 12).

It is undisputed that officers strip-searched § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation C** be unsubstantiated.

Allegation D – Abuse of Authority: At the 69th Precinct stationhouse in Brooklyn, Police Officer Francisco Diaz searched the vehicle in which § 87(2)(b) was an occupant.

In his interview Police Officer Diaz stated that he searched § 87(2)(b)'s Nissan Altima. He searched the car's front and rear passenger areas, the glove compartment, the center console, and the trunk. Police Officer Diaz described this as an "inventory search." He explained that because the car was being vouchered and held at the stationhouse, he had to go through the car and inventory and voucher any personal property that it contained. Police Officer Diaz could not recall whether the car contained any property that he removed and vouchered. Police Officer Diaz did not recall finding any contraband in the car.

In his interview, Sergeant Ayala stated that, after the strip search was finished, Police Officer Diaz and Police Officer Mahmud conducted an inventory search of the Altima, which had been parked in the rear lot of the stationhouse. Sergeant Ayala did not

participate, and his subordinate officers did not speak to him about conducting this inventory search. Sergeant Ayala described the search as a standard procedure to document property associated with an arrest. When asked where the inventory of items found in the vehicle was recorded, Sergeant Ayala said that this would be done in vouchers. Sergeant Ayala did not prepare a list of mundane, non-valuable items found in the vehicle.

In his interview, Police Officer Biliski did not recall whether he searched § 87(2)(b)'s vehicle, or whether any officer searched it. He did not recall whether he prepared any documentation regarding a vehicle search. He said that, based on Department procedure, an arresting officer would be required to prepare property vouchers for any property found in a searched vehicle. Officers do not have or use a separate form for low-value property discovered in an inventory search.

The investigation obtained property vouchers prepared by Police Officer Diaz regarding this incident (**Board Review 12**). Police Officer Diaz vouchered alleged Oxycodone pills, a razor blade wrapped in tape, a cellphone, a smartwatch, and the Nissan Altima as belonging to § 87(2)(b). The voucher for the vehicle notes that an invoicing inspection was done but contains no notes or subsections listing property stored inside the vehicle. The vouchers for the pills, razor blade, cellphone, and smartwatch do not describe where these items were found.

The investigation obtained memo book entries related to this incident from Police Officer Diaz, Sergeant Ayala, and Police Officer Biliski (**Board Review 05** and **Board Review 15**). None of the officers noted that § 87(2)(b)'s vehicle was searched, and none of them noted any property found within the vehicle.

An inventory search is justified by the fact that a detailed and carefully recorded inventory protects seized property while it is in police hands and insures against claims of loss, theft, or vandalism. People v. Galak, 80 N.Y.2d 715 [1993] (**Board Review 16**). According to NYPD Patrol Guide Procedure 218-13, when conducting an inventory search of a seized vehicle, an officer must search the interior of the vehicle thoroughly, remove all valuables, and invoice them on separate property invoices. Property of little value that is left inside the vehicle (e.g., old clothes, cassette tapes, and vehicle parts, etc.) should, within reason, be listed in the uniformed member's memo book and cross referenced to the invoice number covering any valuables removed (**Board Review 17**).

§ 87(2)(g)

it is therefore recommended that **Allegation D** be substantiated.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.

§ 87(2)(b)

§ 87(2)(b)

- Sergeant Ayala has been a member of service for 10 years and has been a subject in eight other CCRB complaints and 22 allegations, of which three were substantiated and six remain open:
 - CCRB complaint number 201802614 involved three substantiated stop allegations against Sergeant Ayala. The Board recommended Command Discipline A and the NYPD has yet to impose discipline.
- Police Officer Diaz has been a member of service for 7 years and has been a subject in three other CCRB complaints and five allegations, none of which were substantiated.

Mediation, Civil and Criminal Histories

- This complaint was unsuitable for mediation.
- A request for any Notice of Claim filed regarding this incident has been submitted to the New York City Office of the Comptroller and the results will be added to the case file upon receipt.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 10

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date